

Calendar Line 8**Case Name:** *Yen Lucero v. Ha V. Dao***Case No.:** 26CV483739**Defendants' Motion to Expunge Notice of Pendency of Action**

A notice of pendency of action shall be expunged unless the claimant establishes by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., § 405.32.) The claimant bears the burden of proof.

As an initial matter, Plaintiff's opposition was untimely filed. The Court has discretion to disregard the untimely opposition. Nevertheless, even considering the opposition and accompanying rebuttal on the merits, Plaintiff has not met her burden under section 405.32.

Plaintiff's opposition clarifies that the alleged fraudulent transfer is not limited to the approximately \$21,000 withdrawal discussed in Defendants' moving papers. Rather, Plaintiff now contends that the relevant transfer consists of the approximately \$425,000 cash down payment used to purchase the subject property and the conveyance of an ownership interest to Defendant Khoi Truong Nguyen, whom Plaintiff characterizes as an insider receiving title without consideration. Plaintiff further seeks to impose a constructive trust and avoid the alleged transfer. Assuming without deciding that these allegations are sufficient to assert a "real property claim" within the meaning of Code of Civil Procedure section 405.4, Plaintiff nevertheless fails to establish the probable validity of that claim.

The evidence submitted does not demonstrate, by a preponderance of the evidence, that funds belonging to the judgment debtor were used to acquire the subject property or that the debtor transferred an interest in the property subject to avoidance. Although Plaintiff argues that the \$425,000 down payment represented fraudulently transferred assets, Plaintiff offers no competent evidence tracing those funds to the judgment debtor. Likewise, Plaintiff has not presented evidence establishing that Defendant Ha Vu Le Dao held an ownership interest in the property that was transferred or concealed. By contrast, Defendants submit declarations stating that Hien Van Dao provided the down payment, obtained the mortgage financing, and that Ha Vu Le Dao never held title to the property.

Plaintiff also relies upon a June 30, 2026 Bankruptcy Court order authorizing the Chapter 7 Trustee to retain a forensic accounting firm to investigate potential avoidance issues. That order demonstrates only that further investigation has been authorized. It does not constitute a judicial finding that a fraudulent transfer occurred, nor does it establish the probable validity of Plaintiff's claims for purposes of Code of Civil Procedure section 405.32.

The Court also notes that Defendants argue Plaintiff lacks standing to pursue fraudulent transfer claims following Ha Vu Le Dao's Chapter 7 bankruptcy filing because such claims belong exclusively to the bankruptcy estate. The Court need not definitively resolve that issue on the present motion. Even assuming Plaintiff has standing to pursue the asserted claims, Plaintiff has not met the evidentiary burden required to establish their probable validity.

Accordingly, Plaintiff has failed to carry her burden under Code of Civil Procedure section 405.32, and the Notice of Pendency of Action must be expunged.

Attorney's Fees

Defendants seek attorney's fees pursuant to Code of Civil Procedure section 405.38.

Although Defendants are the prevailing parties on the motion, the Court finds that an award of attorney's fees is not warranted. Plaintiff's claims, while ultimately insufficient to establish probable validity, were not wholly without substantial justification. Plaintiff presented a legal theory seeking to impose a constructive trust and avoid allegedly fraudulent transfers affecting title to the property. Additionally, the Bankruptcy Court's authorization for the Chapter 7 Trustee to retain a forensic accountant to investigate potential avoidance claims provides some objective basis for Plaintiff's belief that further inquiry into the challenged transactions is warranted. While that order does not establish the merits of Plaintiff's claims, it supports the conclusion that Plaintiff's position was not frivolous or entirely lacking in factual foundation.

Accordingly, the Court exercises its discretion to deny Defendants' request for attorney's fees under Code of Civil Procedure section 405.38.

Disposition

1. Defendants' Motion to Expunge Notice of Pendency of Action is GRANTED.
2. The Notice of Pendency of Action recorded against the subject property shall be expunged.
3. Defendants' request for attorney's fees and costs pursuant to Code of Civil Procedure section 405.38 is DENIED.

Defendant to prepare the final proposed order accompanied by the necessary Form EFS-020 within 7 days of the hearing.

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Case Name: *Rubin Zou v. Amazon.com, Inc. et al.*

Case No.: 26CV484025

Plaintiff Rubin Zou (“Plaintiff”) alleges Defendants Amazon.com (“Amazon”), Naiem Shaik (“Shaik”), (collectively, “Defendants”) and Does 1 through 40 inclusive terminated Plaintiff in retaliation for protected activity after Plaintiff disclosed misconduct, policy violations, and evidence manipulation within Amazon’s internal employment adjudication system. Presently before the court is Defendants’ demurrer (“Demurrer”) to Plaintiff’s Complaint (“Complaint”).

I. BACKGROUND

Plaintiff was hired by Amazon on or about December 4, 2023. (Complaint, ¶ 12.) In April 2025, Plaintiff’s direct supervisor, Shaik, began meeting with Plaintiff to raise concerns with Plaintiff’s performance. (Complaint, ¶ 18.) On May 8, 2025, Defendants presented Plaintiff with a Performance Improvement Plan (“PIP”) which gave Plaintiff the option to either sign a severance agreement in exchange for \$31,262 in severance or enter an “[Performance] Improve[ment] Plan.” (Complaint, ¶ 21.) The PIP represented that if Plaintiff met expectations, he would be removed from the PIP, and if not, he could appeal the manager’s assessment through a structured appeal process. (Complaint, ¶ 23.) The document further stated that “if your appeal is successful, you will be removed from Pivot (PIP) immediately and work with a Talent Advisor who will help you navigate the internal transfer process.” (*Ibid.*)

On or about May 9, 2025, Shaik told Plaintiff the PIP was not his idea but came “from the top,” stated words to the effect of “someone has to go,” and conveyed that Plaintiff was the easiest target as the most junior employee. (Complaint, ¶ 24.) Shaik further stated that he would help Plaintiff, while also referencing a former colleague who “tried everything he could but failed.” (*Ibid.*) Later, Plaintiff sought guidance from Shaik’s manager, who discouraged Plaintiff from proceeding unless Plaintiff was absolutely certain that he would succeed. (Complaint, ¶ 25.) Plaintiff elected to forego severance and enter the PIP process, believing the PIP to be a genuine improvement opportunity with an appeal safeguard and relying on that representation when evaluating the Improve Plan option as a viable path to saving his job. (Complaint, ¶¶ 27, 26.)

Plaintiff was on the PIP from May 15, 2025 to June 13, 2025. (Complaint, ¶ 28.) During that time, Plaintiff was assigned two projects. (Complaint, ¶¶ 30-47.) On June 13, 2025, Shaik issued an “unsuccessful” assessment. (Complaint, ¶ 49.) For the first project, Shaik stated that though Plaintiff had completed the assigned tasks of closing five tickets, Plaintiff failed to satisfactorily complete the project based on unlisted tickets outside the defined project scope, including tickets created more than 10 days after the given deadline. (Complaint, ¶¶ 30, 50.) For the second project, Shaik stated that Plaintiff had not met expectations and that no design document and no code reviews had been submitted, leading Shaik to assess failure for the second project as well. (Complaint, ¶ 51.) However, the second project assigned to Plaintiff “involved brand-new hardware and embedded-system uncertainties unfamiliar to the team...making the project inherently complex and difficult even for experienced engineers, let alone an entry-level employee.” (Complaint, ¶ 40.) Plaintiff had ten working days to complete the project because of unavailable hardware. (Complaint, ¶ 41.) The requirements for the second project did not specify when Plaintiff was required to submit a design document, when